Mr. Baburao Nana Jadahv And Ors vs Mr. Haridas Ramchandra Gurav ... on 13 December, 2022

Author: Madhav J. Jamdar

Bench: Madhav J. Jamdar

906-IA-30091-202

Arjun

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIVIL APPELLATE JURISDICTION

INTERIM APPLICATION NO.30091 OF 2022
IN
SECOND APPEAL NO.822 OF 2022

ARJUN VITTHAL KUDHEKAR
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Date: 2022.12.13 18:58:39 +0530

Mr. Baburao Nana Jadhav & Ors. ...Applicants

Versus

Mr. Haridas Ramchandra Gurav (Since Deceased Through LR's) Mr. Ashok Haridas Gurav & Ors. ...Respondents

Mr. V. S. Talkute, for the Applicants.
Mr. Dilip Bodake, for Respondent Nos. 1A, 2A, 3, 5A2, 6, 7A.

CORAM : MADHAV J. JAMDAR, J.

DATE : 13th DECEMBER, 2022 P.C.:

1. Mr. V. S. Talkute, learned counsel appearing for the Applicants states that following substantial questions of law are involved in the Second Appeal :

"1. Whether the fndings of the Ld. First Appellate Court that the Respondent-Plaintiff Nos. 1 to 3 are Pujaris of the Hill Temple since their forefathers, and have a right to take offerings given by the people at the time of Puja, is without evidence and based upon irrelevant 906-IA-30091-2022.doc and inadmissible piece of evidence and therefore suffers from the element of the vice of perversity and illegality?

2. Whether the fndings of the Ld. First Appellate Court that the Plaintiff Nos. 4 to 5 have the right to maintain the cleanliness of deity at the Hill Temple is also without legal and admissible evidence and therefore suffers from the vice of perversity and illegality?

3. Whether the fndings of the Ld. First Appellate Court that the Respondent-Plaintiff No. 6 has the right to take the skin of sacrifced goats, is also without legal and admissible evidence and therefore suffers from the element of perversity and illegality?

4. Whether the fndings of the Ld. First Appellate Court that the Respondent-Plaintiff No. 7 has the right to cut goats that are sacrifced for deity is also without legal admissible evidence?

12. Whether the Ld. First Appellate Court is justifed in law in upsetting the well-reasoned Judgment of the Ld. Trial Court without even discussing and/or assessing the oral and documentary evidence considered by the Ld. Trial Court for recording the fndings in favour of the Appellants and therefore the Ld. First Appellate Court committed a serious error in exercising jurisdiction vested in it by Section 96 r/w. O. XLI of the Code of Civil Procedure?"

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2. Subject to hearing Mr. Dilip Bodke, learned counsel who appears for some of the Respondents, there is some substance in the contention raised by Mr. Talkute. Hence, ad- interim relief in terms of order dated 12 th September, 2022 passed by learned Ad-hoc District Judge-01, Satara below Exhibit 102 in Reg. Civil Appeal No.281 of 2016 is continued till the next date.

3. Stand over to 20th December, 2022 at 2:30 p.m. (MADHAV J. JAMDAR, J.)